

Change over time in correctional regimes in U.S. states: the joint roles of probation and incarceration

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Extended abstract submitted for consideration for presentation at the PAA Annual Meeting 2026

Abstract:

Recent research has moved beyond a singular focus on mass incarceration to examine how multiple arms of the criminal legal system jointly structure supervision in the United States in ways that are highly racialized. Probation is a central yet often overlooked component. An understanding of the penal landscape requires attention to how supervision is allocated between incarceration and probation, rather than simply the overall level of incarceration. Building on state-level typologies of “control regimes,” we examine race-specific incarceration and probation rates to determine the extent to which states vary over time in deploying punishment and supervision across racial groups. Preliminary results show substantial within-state variation over time in how incarceration and probation are deployed for Black versus White adults. These patterns illuminate the dynamic nature of penal change and highlight the significance of incorporating probation into accounts of penal change and its racialized nature.

INTRODUCTION

Mass incarceration is a defining feature of the contemporary criminal legal system in the United States. The number of people held in jails and prisons has increased exponentially over the past four decades and far exceeds that of most countries. As the carceral system continues to affect the lives of individuals and communities, particularly communities of color (Alexander 2010; Garland 2002; Robey, Massoglia, and Light 2023; Wacquant 2009), a substantial body of scholarship has emerged to examine the causes and consequences of mass incarceration (Kirk and Wakefield 2017).

An equally important yet less-examined parallel trend is the rapid expansion of probation. This court-imposed sentence of probation is often framed as an alternative to incarceration because it is community-based. Described as “mass probation” (Phelps 2016; Phelps 2020), this development mirrors the dynamics of mass incarceration. At its peak in 2007, approximately 4.3 million people were under this form of community supervision, which is a figure that far exceeded the number of individuals incarcerated. Furthermore, the risk of experiencing probation is largest among Black and Latinx men (Boen et al. 2022; Phelps 2016; Phelps 2020). Although the Black-White gap in the probation rate has narrowed in most states since 2007, Black adults were still on probation at a rate of 3,123 per 100,000 compared to 1,284 per 100,000 for White adults in 2018 (Rigby et al. 2024), which avers the persistence of stark racial disparities in community supervision. Such disparity may have implications for racial inequality. Probation carries significant consequences of its own, such as the heightened risks to physical and mental health (Hawks et al. 2022; Phelps et al. 2022) and the constant possibility of reincarceration through revocation (Doherty 2016).

Despite concurrent national growth in incarceration and probation, their rates follow different state-level trajectories. Some states increased their capacity to use both incarceration and probation, while others relied more on one over the other, which reflects different policy logic and institutional capacities (Phelps 2016; Phelps 2020). Building on work documenting how differences in agency capacity and historical development produced interstate and intrastate variation in incarceration rates (Campbell 2018; Pfaff 2017), we view it as important to understand how states institutionalized probation as a separate instrument of control and how its use interacted with incarceration over time. For example, rather than reflecting rising crime rates, the growth of the probation population has been partially driven by the increasing criminalization of misdemeanor cases (Kohler-Hausmann 2019), which has contributed to the increase in admissions into probation (Phelps 2016; Phelps 2020). As state and local actors retain broad discretion in shaping policies around crime and punishment (Campbell 2018), some states have increasingly criminalized misdemeanor cases and “widened the net” of penal control to supervise individuals who previously would not have been subject to state-sanctioned supervision (Phelps 2013).

In the present study, we attempt to expand the literature on the historical expansion of the criminal legal system, while bringing new attention to the role of probation and its racial dimensions. This study extends Phelps’ (2016) typology of correctional regimes, where states are divided into four regimes based on their incarceration and probation rates by quantifying levels of incarceration and probation across states over time. Depending on their values, states are categorized into four types: sparing control (low incarceration, low probation), managerial control (low incarceration, high probation), incapacitative control (high incarceration, low probation), and punitive control (high incarceration, high probation). Building on this typology, we extend our analyses to race-specific regimes (Rigby et al. 2024).

We view a race-specific typology of states based on their incarceration and probation rates

as an important advance in the field, given evidence that racist ideologies are foundational to the criminal legal system (Alexander 2010; Hinton 2016; Lee 2024; Muhammad 2010). Since their inception, jails and prisons have functioned as instruments of exclusion and extraction of communities of color (Alexander 2010; Muller 2012; Smith and Simon 2020; Wacquant 2009). It follows that the expansion of probation may also serve as another instrument in the social control of communities of color. Although Phelps (2013, 2016, 2020) has opened the inquiry into the causes and rationales behind the use of probation, we advance our empirical understanding of how incarceration and probation have been jointly deployed as mechanisms of social control of communities of color. We address this gap by analyzing, from 2001 to 2018, changes in state supervision regimes through Black and White incarceration and probation rates.

ANALYTICAL APPROACH

Data

Data on the number of individuals in prison and under probation were collected from the Bureau of Justice Statistics' National Prisoner Statistics (NPS) and Annual Probation Survey (APS) series, respectively. For each state and year, we use end-of-year counts of adults in state prison and adults on probation in a given state as provided by agencies reporting to the Bureau of Justice Statistics (BJS). We then construct race-specific supervision rates by dividing these counts by race-specific adult population denominators and expressing results per 100,000 adult residents. Our study period covers 2001 to 2018.

[Table 1 Here]

Methods

Based on Phelps' (2016) typology, we categorize states into four "control regimes": sparing (low incarceration, low probation), managerial (low incarceration, high probation), incapacitative (high incarceration, low probation), and punitive (high incarceration, high probation). We apply this typology to total, Non-Hispanic Black (NHB), and Non-Hispanic White (NHW) rates using the median value of each rate across all states from 2001 to 2003 as the threshold for distinguishing between high and low rates. We chose to "freeze" the median rates at 2003 to be able to better display *absolute* changes over time rather than simply *relative* changes over time.

PRELIMINARY RESULTS

Table 2 below reports the dominant regime for each state based on total, NHW, and NHB rates of imprisonment and probation, as well as the number of years that state spent in its dominant regime. For states which spent an equal number of years in two regimes, both are reported. As the dominant regime reflects the modal regime for a state across time, the results provide descriptive evidence of variation in the role punishment plays across and within states.

[Table 2 here]

Figures 1 to 3 visually present the typology of states based on their incarceration and probation rates. Figure 4 is a key to aid in interpretation of the previous figures. Figure 1 maps the typology based on overall rates of incarceration and probation, while Figures 2 and 3 disaggregate these patterns by NHB and NHW rates. In each figure, columns represent years (2001 to 2018)

and rows correspond to states. For example, we categorize New Jersey within the managerial regime in Figure 1 given its relatively low imprisonment and high probation rates. This typology remains consistent throughout time even when we examine rates by race in Figures 2 and 3. On the other hand, states such as Connecticut reveal notable within-state variation by race. Their typology, based on total and NHB rates, reflects a punitive approach with both incarceration and probation rates at high levels. However, their NHW data tell a different story, placing them within the managerial regime in most years, where the NHW population is primarily supervised through probation rather than imprisonment. One overall trend visible in all three of the figures is that in 2018, more states fall into the “extreme” categories of punitive or sparing regimes than in 2001, moving away from the “mixed” regimes of managerial and incapacitative. Although these results are preliminary, this may suggest a polarization effect, where states are diverging with respect to the relative makeup of their carceral systems.

[Figures 1 to 4 Here]

While our current analysis does not examine the sources of within-state variation, such as whether these patterns reflect differential supervision policies across racial and ethnic groups or differences in law enforcement patterns, our initial results indicate the need to consider how incarceration and probation may function as distinct tools applied to different communities.

NEXT STEPS

The next step in completing this paper will be to use latent class analysis to sort states into groups that share similar trajectories of regimes. We hope that this will allow us to identify patterns over time, to more elegantly describe the changes in carceral regimes that different states embody. Another element of this paper will be to assess the construct validity of the regime typology by connecting (1) a state’s dominant regime and (2) a state’s regime trajectory as determined through LCA to that state’s changes in infant mortality rates over time. Since the literature demonstrates that imprisonment and probation are important for population health outcomes like infant mortality rates, we should expect to see differences between regimes and regime trajectories.

FIGURES AND TABLES

Table 1. State-Level Imprisonment and Probation Rates (per 100,000)

Variable	Mean	(SD)
Imprisonment		
Total	655	(27)
Non-Hispanic Black	2,242	(214)
Non-Hispanic White	404	(21)
Probation		
Total	1,922	(188)
Non-Hispanic Black	3,069	(318)
Non-Hispanic White	1,100	(46)
Imprisonment data is from the NPS, probation data is from the APS		

Table 2. Dominant Regime Mode by State

State	Total Rates		Non-Hispanic White Rates		Non-Hispanic Black Rates	
	Dominant Regime	Years in Dominant Regime	Dominant Regime	Years in Dominant Regime	Dominant Regime	Years in Dominant Regime
AK	incapacitative	17	incapacitative	11	incapacitative	12
AL	punitive	13	incapacitative	17	sparing	18
AR	punitive	12	punitive	18	sparing	18
AZ	punitive	18	punitive	18	punitive	18
CA	sparing	8	-	-	-	-
CO	punitive	10	punitive	10	punitive	12
CT	punitive	17	managerial	13	punitive	14
DE	punitive	18	punitive	18	punitive	17
FL	punitive	18	punitive	18	sparing	13
GA	punitive	17	punitive	17	managerial	14
HI	punitive	18	punitive	12	sparing	11
IA	sparing	18	sparing	17	punitive	18
ID	punitive	18	incapacitative	10	punitive	11
IL	sparing/managerial	9	managerial	6	sparing	8
IN	punitive	12	incapacitative	1	sparing	1
KS	sparing	18	-	-	-	-
KY	punitive	11	punitive	10	sparing	12
LA	incapacitative	18	incapacitative	18	incapacitative	14
MA	sparing	10	sparing	3	sparing	4
MD	managerial	9	managerial	17	sparing	9
ME	sparing	18	sparing	14	sparing	14
MI	punitive	17	incapacitative	14	incapacitative	8
MN	managerial	18	managerial	18	managerial	18
MO	incapacitative	18	incapacitative	12	sparing/incapacitative	9
MS	incapacitative	14	incapacitative	17	sparing	18

State	Total Rates		Non-Hispanic White Rates		Non-Hispanic Black Rates	
	Dominant Regime	Years in Dominant Regime	Dominant Regime	Years in Dominant Regime	Dominant Regime	Years in Dominant Regime
MT	sparing	16	incapacitative	13	punitive	9
NC	punitive	8	sparing	15	sparing	14
ND	sparing	18	sparing	18	sparing	15
NE	sparing/managerial	9	sparing	10	sparing	9
NH	sparing	18	sparing	13	sparing	14
NJ	managerial	18	managerial	17	managerial	18
NM	sparing	14	sparing	13	sparing	12
NV	incapacitative	18	incapacitative	3	incapacitative	2
NY	sparing	17	sparing	18	sparing	18
OH	punitive	18	incapacitative	13	sparing	8
OK	incapacitative	16	incapacitative	16	incapacitative	16
OR	sparing/managerial	9	punitive	18	punitive	18
PA	managerial/punitive	9	managerial	15	punitive	12
RI	managerial	18	managerial	18	managerial/punitive	9
SC	incapacitative	17	incapacitative	10	sparing	18
SD	incapacitative	17	-	-	-	-
TN	incapacitative	18	incapacitative	17	sparing	18
TX	punitive	18	punitive	18	incapacitative/punitive	7
UT	sparing	18	sparing	18	sparing/incapacitative	9
VA	incapacitative	18	incapacitative	11	sparing	18
VT	sparing/managerial	9	punitive	14	punitive	16
WA	managerial	18	sparing	15	sparing	11
WI	incapacitative	17	sparing	18	incapacitative/punitive	9
WV	sparing	15	incapacitative	10	sparing	10
WY	sparing	11	punitive	15	incapacitative	8

Figure 1. Visualization of Regime Change Over Time: Total Rates

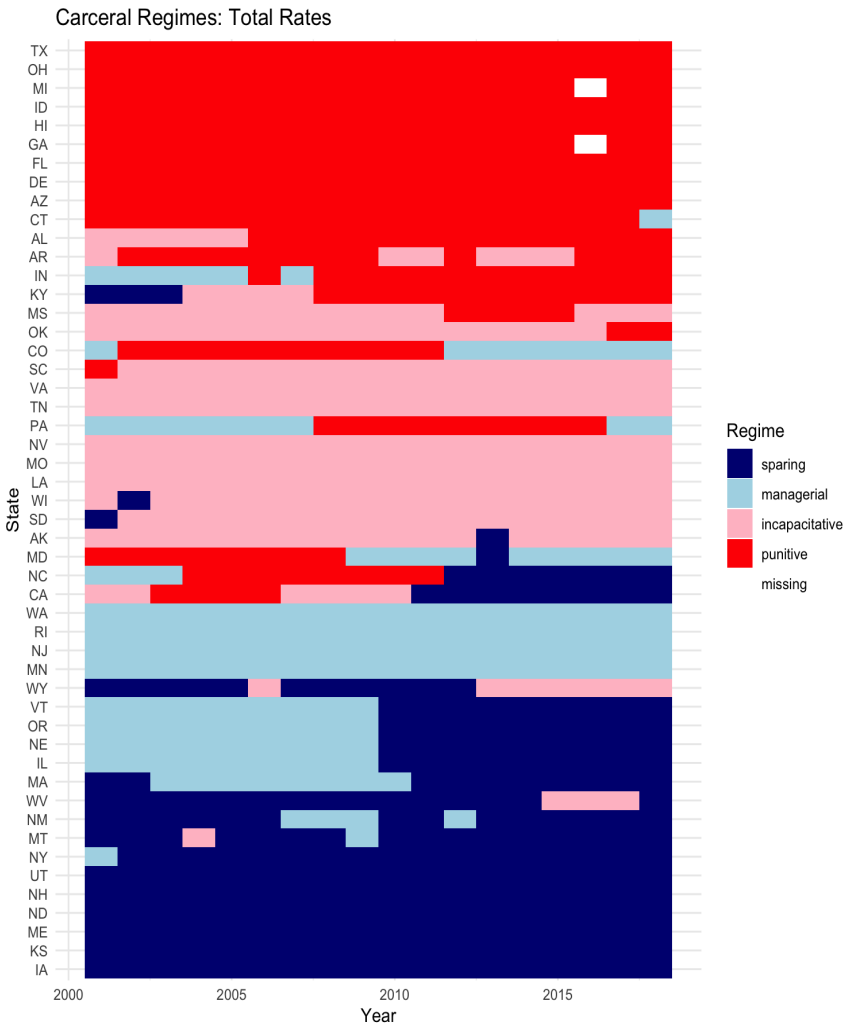


Figure 2. Visualization of Regime Change Over Time: Non-Hispanic White Rates

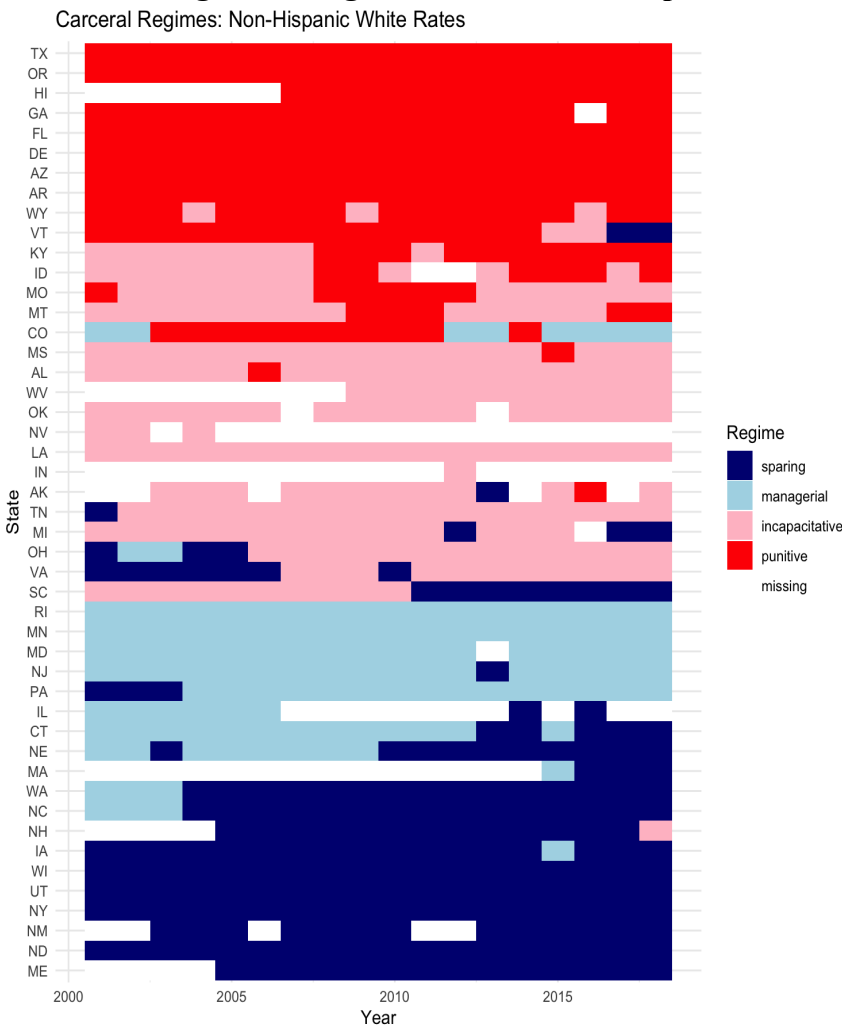


Figure 3. Visualization of Regime Change Over Time: Non-Hispanic Black Rates

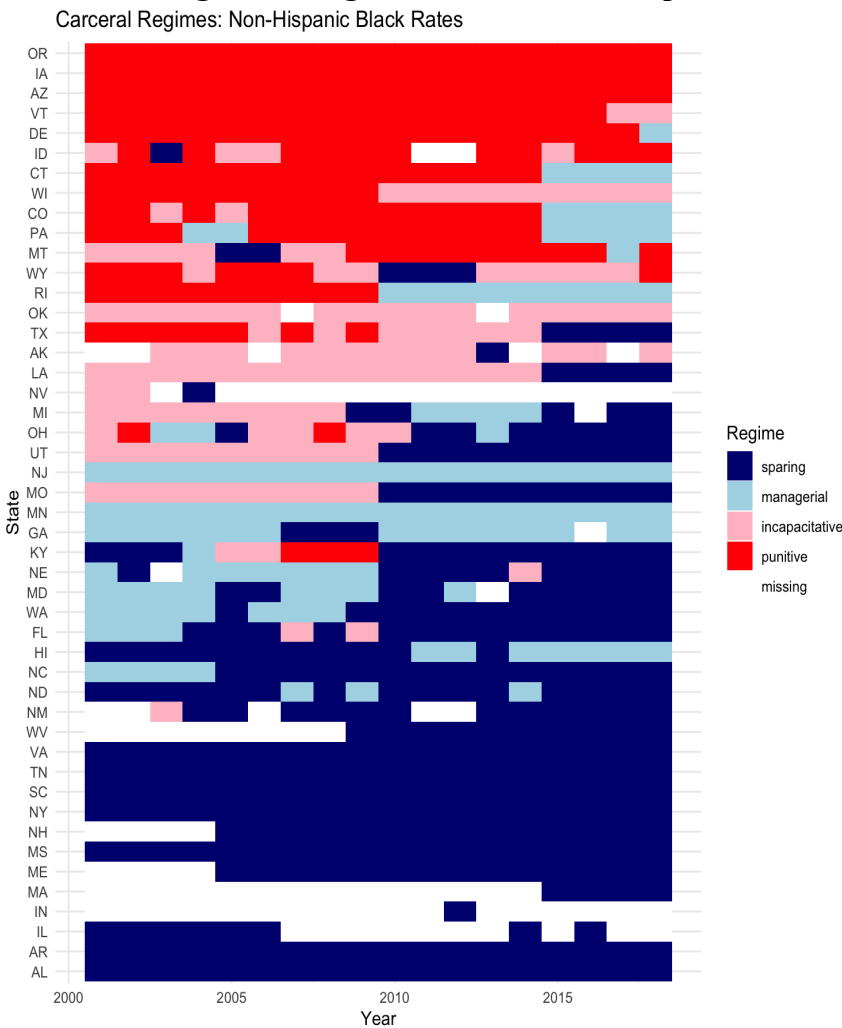
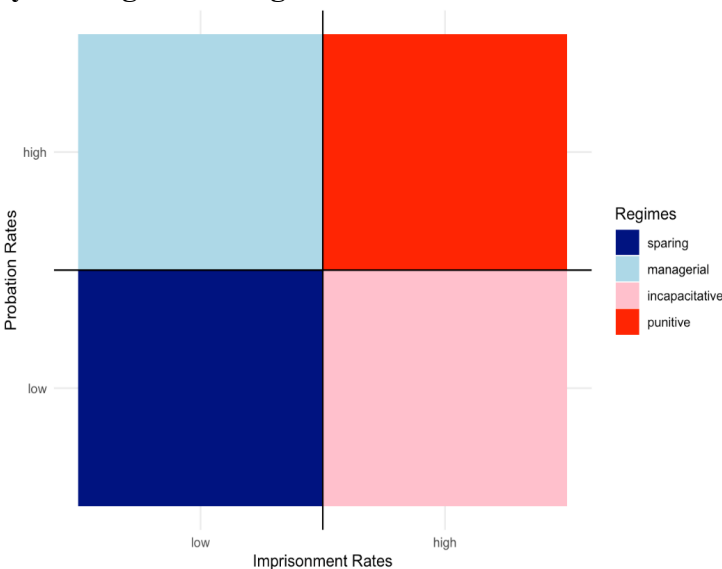


Figure 4: Visual Key for Regime Changes Over Time



REFERENCES

- Alexander, Michelle. 2010. *The New Jim Crow: Mass Incarceration in the Age of Colorblindness*. New York, NY: The New Press.
- Boen, Courtney E., Nick Graetz, Hannah Olson, Zohra Ansari-Thomas, Laurin Bixby, Rebecca A. Schut, and Hedwig Lee. 2022. "Early Life Patterns of Criminal Legal System Involvement: Inequalities by Race/Ethnicity, Gender, and Parental Education." *Demographic Research* 46:131–46.
- Campbell, Michael C. 2018. "Varieties of Mass Incarceration: What We Learn From State Histories." *Annual Review of Criminology* 1(Volume 1, 2018):219–34.
- Doherty, Fiona. 2016. "Obey All Laws and Be Good: Probation and the Meaning of Recidivism." *Georgetown Law Journal* 104(2):291–354.
- Garland, David. 2002. *The Culture of Control: Crime and Social Order in Contemporary Society*. Chicago, IL: University of Chicago Press.
- Hawks, Laura C., Nadine Horton, and Emily A. Wang. 2022. "The Health and Health Needs of People under Community Supervision." *The ANNALS of the American Academy of Political and Social Science* 701(1):172–90.
- Hinton, Elizabeth. 2016. *From the War on Poverty to the War on Crime: The Making of Mass Incarceration in America*. Cambridge, MA: Harvard University Press.
- Kirk, David S., and Sara Wakefield. 2018. "Collateral Consequences of Punishment: A Critical Review and Path Forward." *Annual Review of Criminology* 1:171–94.
- Kohler-Hausmann, Issa. 2018. *Misdemeanorland: Criminal Courts and Social Control in an Age of Broken Windows Policing*. Princeton: Princeton University Press.
- Lee, Hedwig. 2024. "How Does Structural Racism Operate (in) the Contemporary US Criminal Justice System?" *Annual Review of Criminology* 7:233–55.
- Muhammad, Khalil Gibran. 2019. *The Condemnation of Blackness: Race, Crime, and the Making of Modern Urban America, With a New Preface*. Cambridge, MA: Harvard University Press.
- Pfaff, John F. 2017. *Locked in: The True Causes of Mass Incarceration and How to Achieve Real Reform*. New York, NY: Basic Books.
- Phelps, Michelle S. 2013. "The Paradox of Probation: Community Supervision in the Age of Mass Incarceration." *Law & Policy* 35(1–2):51–80.
- Phelps, Michelle S. 2016. "Mass Probation: Toward a More Robust Theory of State Variation in Punishment." *Punishment & Society*.
- Phelps, Michelle S. 2020. "Mass Probation from Micro to Macro: Tracing the Expansion and Consequences of Community Supervision." *Annual Review of Criminology* 3:261–79.
- Phelps, Michelle S., Ingie H. Osman, Christopher E. Robertson, and Rebecca J. Schlafer. 2022. "Beyond 'Pains' and 'Gains': Untangling the Health Consequences of Probation." *Health & Justice* 10(1):29.
- Rigby, David, Daichi Hibi, Ruth Wygle, Hedwig Lee, Joan Casey, Alison Gemmill, and Tim Bruckner. 2024. "State-Level Changes in Racial Disparities in Probation and Parole Rates in the United States, 2001–2018." *American Journal of Epidemiology* kwae460.
- Robey, Jason P., Michael Massoglia, and Michael T. Light. 2023. "A Generational Shift: Race and the Declining Lifetime Risk of Imprisonment." *Demography* 60(4):977–1003.
- Wacquant, Loïc. 2009. *Punishing the Poor: The Neoliberal Government of Social Insecurity*. Durham, NC: Duke University Press.